CS MUN 2024
DISEC
Background Guide

Agenda: Deliberation on the Nuclear Non-Proliferation Treaty with special emphasis on the South Asian Region.

Letter from the Executive Board

Dear Delegates!

It is our honour to welcome you to the simulation of the UNGA: DISEC at CS MUN 24. It will be an honor to serve as your Executive Board for the duration of the conference. This Background Guide is designed to give you an insight into the case at hand. Please refer to it carefully. **Remember, a thorough understanding of the problem is the first step to solving it**.

However, bear in mind that this Background Guide is in no way exhaustive and is only meant to provide you with enough background information to establish a platform for beginning the research. Delegates are highly recommended to do a good amount of research beyond what is covered in the Guide. The guide cannot be used as proof during the committee proceedings under any circumstances.

Finally, we would like to wish you luck in your preparation. In case you have any questions, procedural or otherwise, please feel free to direct them to any member of the Executive Board and we will get back to you as soon as possible. Please do not hesitate to contact us with any queries or concerns. We expect all delegates to be well-versed with the various nuances of the agenda, and geared up for an intense debate, deliberations, and great fun.

Looking forward to meeting you at the conference!

Regards,

Joel Cherian	**Ms. Ashlesha H.**	**Ms. Sridevi Varma**
Chairperson	*Vice Chairperson*	*Vice Chairperson*

Important Points to Remember

A few aspects that delegates should keep in mind while preparing:

1. Procedure: The purpose of putting in procedural rules in any committee is to ensure a more organized and efficient debate. The committee will follow the UNA-USA Rules of Procedure. Taking into consideration the experience level of the delegates present, the Executive Board shall be fairly lenient with the Rules of Procedure so that delegates are not restricted in their statements due to hesitation regarding procedure. However this doesn't mean Rules of Procedure will be neglected altogether.
2. Foreign Policy: Following the foreign policy of one's country is the most important aspect of a Model UN Conference. This is what essentially differentiates a Model UN from other debating formats. To violate one's foreign policy without adequate reason is one of the worst mistakes a delegate can make.
3. Role of the Executive Board: The Executive Board is appointed to facilitate debate. The committee shall decide the direction and flow of debate. The delegates are the ones who constitute the committee and hence must be uninhibited while presenting their opinions/stance on any issue. However, the Executive Board may put forward questions and/or ask for clarifications at all points of time to further debate and test participants.
4. Nature of Source/Evidence: This Background Guide is meant solely for research purposes and must not be cited as evidence to substantiate statements made during the conference. Evidence or proof for substantiating statements made during formal debate is acceptable from the following sources:

    a. United Nations: Documents and findings by the United Nations or any related UN body is held as a credible proof to support a claim or argument. Multilateral Organizations: Documents from international organizations like OIC, NAFTA, SAARC, BRICS, EU, ASEAN, the International Court of Justice, etc. may also be presented as credible sources of information.

    b. Government Reports: These reports can be used in a similar way as the State Operated News Agencies reports and can, in all circumstances, be denied by another country.

    c. News Sources:

        1. Reuters: Any Reuters article that clearly makes mention of the fact or is in contradiction of the fact being stated by a delegate in council.

        2. State operated News Agencies: These reports can be used in the support of or against the State that owns the News Agency. These

reports, if credible or substantial enough, can be used in support of or against any country as such but in that situation, may be denied by any other country in the council. Some examples are – RIA Novosti (Russian Federation), Xinhua News Agency (People's Republic of China), etc.

3. University Papers: Any non conflicting university paper with certain levels of credibility may/may not be taken into consideration upon the discretion of the EB taking into consideration the information being referred from the paper(s).

****Please Note: Reports from NGOs working with UNESCO, UNICEF and other UN bodies will be accepted. Under no circumstances will sources like Wikipedia, or newspapers like the Guardian, Times of India, etc. be accepted. However, notwithstanding the criteria for acceptance of sources and evidence, delegates are still free to quote/cite from any source as they deem fit as a part of their statements.*

Introduction to the Committee

The United Nations General Assembly is one of the six important organs of the United Nations (UN), and the primary deliberative, strategy making and representative organ of the UN. The first committee of the General Assembly is the Disarmament and International Security Committee. It deals with disarmament, global challenges and threats to peace that affect the international community and seeks out solutions to the challenges in the international security regime.

The Mandate of DISEC

The committee considers all disarmament and international security matters within the scope of the Charter or relating to the powers and functions of any other organ of the United Nations; the general principles of cooperation in the maintenance of international peace and security, as well as principles governing disarmament and the regulation of armaments; promotion of cooperative arrangements and

measures aimed at strengthening stability through lower levels of armaments. The Committee works in close cooperation with the United Nations Disarmament Commission and the Geneva-based Conference on Disarmament. It is the only Main Committee of the General Assembly entitled to verbatim records coverage.

What is the Non Proliferation Treaty?

The NPT is an international treaty which aims to prevent the spread of nuclear weapons and weapons technology, to promote peaceful uses of nuclear energy in the global community and to further the goal of achieving nuclear disarmament.Opened for signature in 1968, the Treaty entered into force in 1970. On 11 May 1995, the Treaty was extended indefinitely. A total of 191 States have joined the Treaty, including the five nuclear-weapon States. More countries have ratified the NPT than any other arms limitation and disarmament agreement, a testament to the Treaty's significance.

The International Atomic Energy Agency (IAEA) is tasked to oversee global nuclear cooperation and also to check for violations of the NPT . Safeguards are used to verify compliance with the Treaty through inspections conducted by the IAEA. The Treaty promotes cooperation in the field of peaceful nuclear technology and equal access to this technology for all States parties, while safeguards prevent the diversion of fissile material for weapons use.

Background

The Nuclear Non-Proliferation Treaty (NPT) emerged from the ashes of the Cold War, a time marked by intense nuclear proliferation and global annihilation. The bombings of Hiroshima and Nagasaki in 1945 demonstrated the potential of nuclear weapons, prompting action from the international community. In the 1950s and 1960s, the arms race between the United States and the Soviet Union intensified, leading to a growing number of nuclear-armed states. These developments culminated in the 1968 signing of the NPT, which aimed to prevent the proliferation of nuclear weapons, promote the peaceful use of nuclear energy, and work towards nuclear disarmament. The treaty's creation was influenced by the desire to avoid a catastrophic nuclear war, the recognition of the dangers posed by nuclear proliferation, and the growing international consensus on the need for arms control measures.

Article VII of the Nuclear Nonproliferation Treaty (NPT), which entered into force in 1970, affirms the right of countries to establish specified zones free of nuclear weapons. The UN General Assembly reaffirmed that right in 1975 and outlined the criteria for such zones. Within these nuclear-weapon-free zones, countries may use nuclear energy for peaceful purposes.

Cooperation

The Nuclear Non-Proliferation Treaty (NPT) is a cornerstone of international efforts to prevent the spread of nuclear weapons and promote disarmament.

At its core, the NPT establishes a framework for cooperation between nuclear and non-nuclear states. This cooperation is essential for ensuring the treaty's effectiveness and preventing the emergence of new nuclear powers.

Key Aspects of Cooperation Under the NPT

- **Safeguards:** The International Atomic Energy Agency (IAEA) is responsible for implementing safeguards to verify compliance with the NPT. These safeguards involve inspections of nuclear facilities to ensure that nuclear material is not being diverted for weapons purposes. Effective cooperation between states and the IAEA is crucial for the success of the safeguards system.

  The NPT and IAEA safeguards

  Treaty on the Non-Proliferation of Nuclear Weapons (NPT) - UNODA

  Assistance for States on implementation of IAEA safeguards

- **Peaceful Uses of Nuclear Energy:** The NPT recognizes the right of all states to develop and use nuclear energy for peaceful purposes. However, this right must be exercised in accordance with the treaty's non-proliferation obligations. Cooperation between states is essential for ensuring that nuclear technology is used responsibly and safely.

  Treaty on the Non-Proliferation of Nuclear Weapons (NPT) - UNODA

- **Nuclear Disarmament:** The NPT requires the nuclear weapon states to pursue disarmament in good faith. This includes commitments to reduce their nuclear arsenals

and ultimately eliminate them. Cooperation between the nuclear weapon states and non-nuclear weapon states is essential for achieving these goals.

Treaty on the Non-Proliferation of Nuclear Weapons (NPT) - UNODA

Next Steps to Universal Nuclear Disarmament - the United Nations

- **Technology Transfer:** The NPT encourages the transfer of nuclear technology for peaceful purposes, particularly to developing countries. However, this transfer must be subject to safeguards to prevent the diversion of technology for weapons purposes. Cooperation between states is necessary to ensure that technology transfer is carried out responsibly and in accordance with the NPT's objectives.

Past Attempts at Cooperation and Achievements

- **The London Club:** Established in 1978, the London Club was a group of nuclear suppliers that developed guidelines for the export of nuclear materials and technology. These guidelines were designed to prevent the proliferation of nuclear weapons.

- **The Zangger Committee:** Established in 1978, the Zangger Committee is a group of nuclear suppliers that developed guidelines for the export of nuclear technology. These guidelines were designed to prevent the diversion of nuclear technology for weapons purposes.

- **The Nuclear Suppliers Group (NSG):** Established in 1974, the NSG is a group of countries that control the export of nuclear materials, equipment, and technology. The NSG has played a significant role in preventing the proliferation of nuclear weapons.

- **The Proliferation Security Initiative (PSI):** Launched in 2003, the PSI is a global effort to interdict and prevent the trafficking of weapons of mass destruction and their delivery systems. The PSI has been successful in disrupting several attempts to proliferate nuclear weapons.

  The Proliferation Security Initiative (PSI) At a Glance - Arms Control Association

Failures and Loopholes in Cooperation

- **Non-Compliance:** Some states have violated their obligations under the NPT, either by developing nuclear weapons or by failing to comply with safeguards requirements. These violations have undermined the effectiveness of the treaty and have led to increased tensions.

  The NPT: A Crisis of Non-Compliance - state.gov

The purpose of the NPT

The NPT is a cornerstone of international efforts to prevent the spread of nuclear weapons and promote disarmament. It was opened for signature in 1968, entered into force in 1970, and has been extended indefinitely. The treaty has been ratified by 191 states, making it one of the most widely ratified international agreements.

The primary objectives of the NPT are:

- **Prevention of the spread of nuclear weapons:** The treaty seeks to prevent the proliferation of nuclear weapons to non-nuclear states. This is achieved through a system of safeguards implemented by the International Atomic Energy Agency (IAEA).
- **Disarmament:** The NPT requires the nuclear weapon states to pursue disarmament in good faith. This means that they are obligated to reduce their nuclear arsenals and ultimately eliminate them.
- **Peaceful uses of nuclear energy:** The treaty recognizes the right of all states to develop and use nuclear energy for peaceful purposes. However, this right must be exercised in accordance with the treaty's non-proliferation obligations.

Contribution of the treaty to non-proliferation and disarmament

The Nuclear Non-Proliferation Treaty (NPT) has played a pivotal role in preventing the spread of nuclear weapons and promoting disarmament since its entry into force in 1970. While challenges and setbacks have persisted, the NPT has undeniably contributed to a more stable international security environment.

Non-Proliferation

- **Safeguards and Verification:** The NPT established a robust system of safeguards under the auspices of the International Atomic Energy Agency (IAEA). These safeguards

involve inspections of nuclear facilities to ensure that nuclear material is not being diverted for weapons purposes. The IAEA's verification efforts have been instrumental in preventing the proliferation of nuclear weapons.
    - **IAEA:** https://www.iaea.org/
- **Export Controls:** The NPT has encouraged the development of international export controls on nuclear materials, technology, and equipment. These controls have made it more difficult for non-nuclear states to acquire the necessary components to build nuclear weapons.
    - **Nuclear Suppliers Group (NSG):** https://www.nuclearsuppliersgroup.org/index.php/en/
- **Normative Influence:** The NPT has helped to establish a global norm against the possession and use of nuclear weapons. This norm has influenced the decisions of many states, even those not party to the treaty, to refrain from pursuing nuclear weapons.

Disarmament

- **Pledges and Commitments:** The NPT requires the nuclear weapon states to pursue disarmament in good faith. While progress has been slow, the treaty has served as a framework for disarmament negotiations and has led to some reductions in nuclear arsenals.
    - **United Nations Office for Disarmament Affairs (UNODA):** https://disarmament.unoda.org/
- **Confidence-Building Measures:** The NPT has facilitated the development of confidence-building measures between nuclear weapon states. These measures, such as information exchange and transparency, have helped to reduce tensions and improve the prospects for disarmament.
- **International Pressure:** The NPT has provided a platform for international pressure on nuclear weapon states to fulfill their disarmament obligations. This pressure has helped to keep the issue of disarmament on the global agenda.

Challenges and Limitations

Despite its achievements, the NPT has faced significant challenges:

- **Non-Compliance:** Some states have violated their obligations under the NPT, either by developing nuclear weapons or by failing to comply with safeguards requirements. These violations have undermined the treaty's effectiveness and have led to increased tensions.
    - **IAEA Reports on Non-Compliance:** https://www.iaea.org/publications/reports
- **Dual-Use Technology:** Some nuclear technology can be used for both peaceful and military purposes. This makes it difficult to prevent the proliferation of nuclear weapons, even with strict export controls.

Siamese twins - The civilian and military use of nuclear technology - War and Peace

- **Black Market Proliferation:** Despite efforts to prevent the proliferation of nuclear weapons, it is possible for nuclear materials and technology to be obtained on the black market. This poses a significant challenge to international efforts to prevent the spread of nuclear weapons.
- **Lack of Political Will:** In some cases, the lack of political will among states has hindered cooperation on nuclear non-proliferation. This has made it difficult to achieve progress on disarmament and other key objectives of the NPT.

Nuclear Weapon Free Zones' (NWFZ) contributions to non-proliferation and disarmament

Treaty of Tlatelolco

In Latin America, two of the largest countries in the region, Argentina and Brazil, have both large nuclear power industries and the potential capability to develop nuclear weapons. The Treaty of Tlatelolco provides a confidence-building framework and regional non-proliferation norm which has helped defuse a potential nuclear arms race between these two key regional states. Together with the Brazilian-Argentine Agency for Accounting and Control of Nuclear Materials (ABACC) bilateral treaty between Argentina and Brazil, the Treaty of Tlatelolco has created a regional non-proliferation regime that has highly effective verification and compliance provisions, which should greatly reduce the chance of nuclear proliferation in this region.

Treaty of Rarotonga

The South Pacific NWFZ has served to reduce the risk of future nuclear-weapon rivalry between state parties and neighboring regions. The Treaty of Rarotonga has not only served to reinforce Australia's commitment to non-proliferation—despite Australia having considered nuclear weapon development in the 1960s to early 1970s—but it also prohibits NWSs conducting nuclear tests in the region.

Treaty of Bangkok

For South-East Asia the Treaty of Bangkok similarly confirms and reinforces the nonproliferation commitments of the ASEAN group, and creates major legal and political barriers to any potential break-away state. It also prevents NWSs from again stationing

nuclear-capable forces at military bases in the region, as was the case during the Vietnam War. While the Treaty of Rarotonga and the Treaty of Bangkok have yet to secure complete ratification of the relevant protocols by the NWSs, there were signs of renewed willingness at the 2010 NPT Review Conference either to undertake the necessary ratification or, in the case of the Treaty of Bangkok, enter into fresh negotiations on the protocols.

Treaty of Pelindaba

In Africa, the Treaty of Pelindaba has contributed to reversing and preventing proliferation, as had already started in South Africa in 1989. The zone also prevents a repeat of the use of African territory for nuclear weapons testing, stationing, and deployment.

Treaty of Semipalatinsk

In Central Asia, the Treaty of Semipalatinsk has played a critical role in averting further proliferation in a strategic region that has extensive access to fissile materials, plutonium stockpiles and nuclear-weapons-related facilities dating back to the Soviet administration, and nuclear expertise. In signing and ratifying the treaty, the Central Asian states have greatly reduced proliferation risks within the region and moved to prevent the NWSs from once again using the region for nuclear weapons testing and stationing. As in the case of the Korean Peninsula, a continued failure of the Western NWSs to offer the Central Asian zone states negative security guarantees against use or threat of use of nuclear weapons could well be counterproductive in the longer term. It may prompt one of the Central Asian states to make the same decision that the Democratic People's Republic of Korea appears to be making that nuclear weapons need to be acquired to insure against nuclear attack.

Treaty on the Prohibition of Nuclear Weapons (TPNW):

The TPNW is a more recent global treaty, adopted in 2017 and entered into force in January 2021.It seeks to create a nuclear-weapon-free world by prohibiting the development, testing, possession, use, and threat of use of nuclear weapons by signatory states.While not a regional NWFZ, it complements existing NWFZs and represents a significant step toward disarmament.

These NWFZs vary in scope and membership but share the common goal of promoting nuclear disarmament, regional security, and the prevention of nuclear proliferation. They demonstrate the commitment of states to work collectively to reduce the threat posed by nuclear weapons and contribute to global peace and security.

Guidelines and Principles for the Nuclear-Weapon-Free Zones

The UN Disarmament Commission in its report of April 30, 1999, recommended a set of principles and guidelines for the establishment of a nuclear-weapon-free zone, which included, *inter alia*:

- Nuclear-weapon-free zones should be established on the basis of arrangements freely arrived at among the States of the region concerned.
- The initiative to establish a nuclear-weapon-free zone should emanate exclusively from States within the region concerned and be pursued by all States of that region.
- The nuclear-weapon States should be consulted during the negotiations of each treaty and its relevant protocol(s) establishing a nuclear-weapon-free zone in order to facilitate their signature to and ratification of the relevant protocol(s) to the treaty, through which they undertake legally binding commitments to the status of the zone and not to use or threaten to use nuclear weapons against States parties to the treaty.
- A nuclear-weapon-free zone should not prevent the use of nuclear science and technology for peaceful purposes and could also promote, if provided for in the treaties establishing such zones, bilateral, regional, and international cooperation for the peaceful use of nuclear energy in the zone, in support of socio-economic, scientific and technological development of the States parties.

Treaties Involved in the Nuclear-Weapon-Free Zones

The following treaties form the basis for the existing NWFZs:

- Treaty of Tlatelolco — Treaty for the Prohibition of Nuclear Weapons in Latin America and the Caribbean
- Treaty of Rarotonga — South Pacific Nuclear Free Zone Treaty
- Treaty of Bangkok — Treaty on the Southeast Asia Nuclear Weapon-Free Zone
- Treaty of Pelindaba — African Nuclear-Weapon-Free Zone Treaty
- Treaty on a Nuclear-Weapon-Free Zone in Central Asia

Resolution on the Establishment of a nuclear-weapon-free zone in the region of the Middle East (77th Session)

- A/RES/77/38

Other treaties that also deal with the denuclearization of certain areas are:

- Antarctic Treaty

- Outer Space Treaty — Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies
- Moon Agreement — Agreement Governing the Activities of States on the Moon and Other Celestial Bodies
- Seabed Treaty — Treaty on the Prohibition of the Emplacement of Nuclear Weapons and Other Weapons of Mass Destruction on the Sea-Bed and the Ocean Floor and in the Subsoil Thereof

Other Treaties Involved in and directly coexisting with the NPT

The Comprehensive Nuclear-Test-Ban Treaty

The Comprehensive Nuclear-Test-Ban Treaty (CTBT) bans all nuclear explosions, whether for military or peaceful purposes. It comprises a preamble, 17 articles, two annexes and a Protocol with two annexes.

Another important text is the Resolution adopted by the States Signatories on 19 November 1996 establishing the Preparatory Commission for the Comprehensive Nuclear-Test-Ban Treaty Organisation (CTBTO).

It has not come to force yet as eight specific nations have not ratified the treaty.

Obligations under CTBT

-Each State Party undertakes not to carry out any nuclear weapon test explosion or any other nuclear explosion, and to prohibit and prevent any such nuclear explosion at any place under its jurisdiction or control.

-Each State Party undertakes, furthermore, to refrain from causing, encouraging, or in any way participating in the carrying out of any nuclear weapon test explosion or any other nuclear explosion.

Joint Comprehensive Plan of Action

The Joint Comprehensive Plan of Action (JCPOA) is a detailed, 159-page agreement with five annexes reached by Iran and China, France, Germany, Russia, the United Kingdom, and the

United States (a group known as the P5+1) on July 14, 2015.This nuclear deal was endorsed by UN Security Council Resolution 2231, adopted on July 20, 2015.

KEY REQUIREMENTS AND ACTIONS MANDATED BY THE JCPOA

- For 10 years operating centrifuges reduced to 5,060 IR-1 machines, total machines is 6,104 IR-1s
- Excess centrifuges (over 13,000) dismantled and stored under IAEA monitoring
- For 15 years level of uranium enrichment capped at 3.67 percent uranium-235
- For 15 years enrichment only at Natanz
- For 10 years no production of additional IR-1 centrifuges
- Between years 11-13 Iran can replace IR-1s with the equivalent capacity of IR-6 and IR-8 machines and limits lasting to years 14-15
- For 15 years the stockpile is kept under 300 kilograms of 3.67 percent enriched uranium in total (all forms)
- Excess enriched uranium sold, shipped abroad for storage, or diluted to natural Uranium Stockpile uranium levels
- For 15 years no heavy-water reactors in Iran
- For 15 years no accumulation of heavy water in Iran
- For 10 years Joint Commission review and approval of changes to the research and development plan
- Remove and disable the original coreFor 25 years continuous monitoring of Iran's uranium mines and mills
- For 20 years continuous monitoring of Iran's centrifuge production facilities of the Arak reactor
- Replace the core of the Arak reactor to reduce weapons-grade plutonium output, certified by the Joint Commission ,etc.

Outcome of the JCPOA

Iran needs to acquire three components in order to become a military nuclear power: highly enriched uranium, a functional warhead, and a missile capable of delivering it. The JCPOA addresses only the first of these efforts in any detail, and even then, offers merely partial and temporary solutions. The deal largely ignores the second effort, and actually advances the third.

The JCPOA did limit Iran’s immediate ability to enrich enough uranium for a bomb. It reduced the regime’s uranium stockpile by 97 percent, mothballed two-thirds of its centrifuges, and re-designated two of its major nuclear facilities as civilian research centers. Uranium enrichment was capped at 3.7 percent, far short of weapons-grade. These concessions were intended to extend the time Iran needed to enrich enough uranium for a single bomb from approximately

three months to a year. Should Iran attempt to break out and go nuclear, advocates explained, the international community would have enough time to intervene. The JCPOA, they asserted, blocked all of Iran's paths to a bomb.

But the JCPOA allowed Iran to retain its massive nuclear infrastructure, unnecessary for a civilian energy program but essential for a military nuclear program. The agreement did not shut down a single nuclear facility or destroy a single centrifuge.

Iran never fully complied with the JCPOA and is currently in violation of it on several accounts, including uranium stockpiles, uranium-enrichment levels, and centrifuge use. A much more restrictive agreement is required to permanently and verifiably dismantle Iran's nuclear weapons program. The Biden Administration should take advantage of the strong bargaining position it inherited from the Trump Administration's maximum pressure campaign and sanctions innovations to secure a more restrictive agreement that will enhance the security of the United States and its allies. Bowing to Tehran's nuclear extortion and rushing to return to the defective JCPOA will only squander U.S. leverage, generate adverse regional consequences, and allow Iran to set the stage for an eventual nuclear breakout.

President Joe Biden has made it clear that he is committed to reviving the 2015 Iran nuclear deal, the deeply flawed Joint Comprehensive Plan of Action (JCPOA). Doing so would reward a hostile dictatorship that has repeatedly reneged on its nonproliferation obligations, violated international laws, and pocketed past concessions without moderating its aggressive foreign policy. Returning to the JCPOA would also perpetuate the same old problems inherent in that discredited arrangement. Moreover, it would squander the bargaining leverage amassed by the Trump Administration through its "maximum pressure" campaign and reduce the chances of negotiating a follow-on agreement to fill the dangerous gaps in the JCPOA.

Challenges to NPT Compliance in the South Asian region

South Asia is a region with a complex geopolitical landscape, and the Nuclear Non-Proliferation Treaty (NPT) has faced significant challenges in ensuring compliance within this region. Several factors contribute to these difficulties, including historical tensions, regional rivalries, and domestic political considerations.

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Historical Tensions and Regional Rivalries

- **India-Pakistan Nuclear Arms Race:** The longstanding rivalry between India and Pakistan, rooted in territorial disputes and historical animosities, has been a major driver of nuclear proliferation in South Asia. Both countries have developed nuclear weapons programs, and their ongoing tensions have created a climate of insecurity that has made it difficult to implement effective non-proliferation measures.
    - **Kashmir Conflict:** The dispute over the Kashmir region, a territory claimed by both India and Pakistan, has been a major source of tension and conflict. The region has witnessed numerous wars and armed skirmishes over the years, contributing to the arms race between the two countries.
    - **Border Clashes:** Frequent border clashes and military buildups along the Line of Control (LoC) have further escalated tensions and increased the risk of nuclear escalation.
    - **Nuclear Tests:** India and Pakistan conducted nuclear tests in 1998, further escalating tensions and reinforcing their commitment to nuclear deterrence. These tests were widely condemned by the international community and led to increased sanctions and diplomatic isolation.
- **Regional Arms Race:** The nuclear arms race between India and Pakistan has led to a broader regional arms race, with other countries in the region seeking to acquire nuclear capabilities or other advanced weapons systems as a deterrent. This has made it more difficult to enforce the NPT's non-proliferation obligations.
    - **China's Role:** China's growing influence in the region has also contributed to the arms race, as countries seek to balance China's power. China has developed a strong relationship with Pakistan, providing economic assistance and military support.
    - **Pakistan's Role:** Pakistan has provided nuclear technology and expertise to other countries, such as Iran and North Korea, which has further fueled proliferation concerns. These transfers have violated the NPT's non-proliferation obligations and have led to international sanctions.

Domestic Political Considerations

- **National Security Concerns:** Many countries in South Asia view nuclear weapons as a deterrent against external threats, particularly from their regional rivals. This has made it difficult to persuade them to give up their nuclear programs, even in the face of international pressure.
    - **India's Perception of China:** India's perception of China as a growing threat has reinforced its belief in the need for a nuclear deterrent. India sees China's economic and military rise as a challenge to its regional dominance.

    - **Pakistan's Security Concerns:** Pakistan's security concerns, including its rivalry with India and the threat of terrorism, have also contributed to its decision to develop nuclear weapons. Pakistan has faced numerous terrorist attacks and has been involved in conflicts with India over Kashmir.
- **Domestic Politics:** Domestic political considerations can also influence a country's decision to comply with the NPT. For example, some governments may be reluctant to give up their nuclear programs for fear of losing domestic support or facing political instability.
    - **Nationalism and Pride:** Nuclear weapons can be seen as symbols of national pride and power, making it difficult for governments to give them up.
    - **Domestic Opposition:** Opposition parties or interest groups may resist efforts to dismantle a country's nuclear program. This can make it difficult for governments to make concessions on nuclear non-proliferation.

Challenges to IAEA Verification

- **Opaque Nuclear Programs:** Some countries in South Asia have opaque nuclear programs that make it difficult for the International Atomic Energy Agency (IAEA) to verify their compliance with the NPT. This can create tensions between the IAEA and the countries concerned.
    - **Incomplete Declarations:** Some countries may provide incomplete or inaccurate declarations of their nuclear material and facilities. This can make it difficult for the IAEA to track the whereabouts of nuclear materials and ensure that they are not being diverted for weapons purposes.
    - **Restricted Access:** The IAEA may face restrictions on access to sensitive nuclear sites, such as military facilities or research laboratories. These restrictions can hinder the IAEA's ability to conduct effective inspections.
- **Lack of Transparency:** The lack of transparency in some South Asian countries' nuclear programs can make it difficult to build trust and confidence between the IAEA and these countries. This can hinder the effectiveness of the IAEA's verification efforts.
    - **Government Secrecy:** Some governments may be reluctant to share information about their nuclear programs due to national security concerns. This can make it difficult for the IAEA to conduct its verification activities.
    - **Lack of Cooperation:** Countries may resist IAEA inspections or provide misleading information to obstruct verification efforts. This can undermine the credibility of the IAEA's verification regime.

Challenges to a Regional NWFZ in South Asia

The concept of a NWFZ in South Asia is not a new idea. Countries have proposed such a zone at various times; most notably, Pakistan in 1974 when it supported Resolution 3265B at the United Nations General Assembly. Pakistan's support for a NWFZ was based on its apprehension of a further widening of military capabilities vis-à-vis India, following India's Nuclear Testing in 1974

Given that India and Pakistan have now both joined the group of NWS, however, prospects for a regional agreement on a NWFZ have diminished significantly. An additional challenge is that South Asia lacks a strong regional organization. In Latin America and South East Asia, the push for NWFZs came from such regional multilateral negotiations at fora such as the Organisation for American States (OAS), and the Association of Southeast Nations (ASEAN). The subsequent creation of organizations like the Agency for the Prohibition of Nuclear Weapons in Latin America and the Caribbean (OPANAL) has further strengthened their regional efforts towards nuclear non-proliferation and disarmament.

Sri Lanka was one of the early supporters of NWFZs, arguing as far as back as 1964 that NWFZs should be "extended to cover not only land masses but oceans as well" However, given the current impasse on a South Asian NWFZ, Sri Lanka could look to formulate a single-state NWFZ. One obvious starting point would be to study the Mongolian Single State NWFZs, including how Mongolia was able to negotiate the relevant treaty with its NWS neighbors, Russia and China.

Sri Lanka would have to make a number of decisions on the scope of such a treaty—including whether it would cover areas beyond Sri Lanka's territorial waters—and the list of prohibitions. In addition, Sri Lanka should consider whether to include strict definitions of terms such as 'nuclear weapon' and 'delivery systems' (the technology and systems used to place a nuclear weapon at the position of detonation, such as ballistic missiles or cruise missiles) or to leave such details open for further negotiation, in view to a potentially broader and more ambitious disarmament agenda.

In order to establish a preliminary, unilateral, and single-state NWFZ that is effective, the terms must be acceptable to China, India and Pakistan, including with respect to their agendas in the Indian Ocean. It is plausible that Delhi would welcome the initiative, albeit with some initial caution, as it would help to alleviate perceived risks stemming from Sri Lanka's location on China's 'string of pearls' and its associated naval nuclear strategy in the region.

Generating International Support

In addition to minimizing the risks of a nuclear accident, a single-state NWFZ could revive Sri Lanka's international credibility in upholding its non-aligned and related disarmament principles. It is also an opportunity to strengthen relations with member states of the Association of Southeast Asian Nations (ASEAN) by linking the single-state NWFZ with the Southeast Asia NWFZ (Bangkok Treaty).14 Such an outcome would depend on negotiating a treaty that is tied to the existing verification regimes of the Bangkok Treaty, and which receives broad international recognition, especially from NWS.

Depending on the progress and type of the single-state NWFZ, Sri Lanka could also seek to expand the zone to a broader 'Weapons of Mass Destruction Free Zone' that includes chemical, biological, and radiological weapons. The most concrete proposal for a WMD Free Zone remains the Middle East WMD Free Zone, 15 which has enjoyed broad support from a number of Arab States.

Finally, it should be noted that efforts towards a single-state NWFZ should be approached with caution, as a single-state initiative could discourage countries from joining regional NWFZs. However, given the absence of any regional framework in the offing, this may be the ideal time for Sri Lanka to step up and lead the conversation on regional nuclear non-proliferation and disarmament, by pursuing a single-state NWFZ.

Current status and the way forward

The Nuclear Non-Proliferation Treaty (NPT) remains a cornerstone of international efforts to prevent the spread of nuclear weapons and promote disarmament. However, the treaty faces significant challenges in the current global landscape.

The NPT has been ratified by 191 states, making it one of the most widely ratified international agreements. However, a handful of states, including Israel, India, and Pakistan, have not signed or ratified the treaty. While many states have complied with their NPT obligations, there have been instances of non-compliance. North Korea's withdrawal from the treaty in 2003 and its subsequent development of nuclear weapons have been a major setback for the NPT regime.

Progress on nuclear disarmament has been slow. The nuclear weapon states have made some reductions to their arsenals, but they have not fulfilled their commitment to pursue disarmament in good faith. Additionally, the emergence of new threats, such as cyberterrorism and the potential for non-state actors to acquire nuclear materials, has made it more difficult to ensure the NPT's effectiveness.

Addressing the challenges facing the NPT will require a multifaceted approach. The NPT regime can be strengthened through measures such as:

- **Improving verification capabilities:** The International Atomic Energy Agency (IAEA) should continue to enhance its verification capabilities to ensure that it can effectively monitor nuclear activities and detect any deviations from NPT obligations.
- **Enhancing international cooperation:** The international community should strengthen cooperation on nuclear nonproliferation, including through the Nuclear Suppliers Group (NSG) and the Proliferation Security Initiative (PSI).
- **Promoting regional stability:** Addressing regional conflicts and tensions can help to create a more conducive environment for nuclear nonproliferation.

Non-compliance with the NPT must be addressed through diplomatic efforts, sanctions, and other measures. The nuclear weapon states must renew their commitment to disarmament and take concrete steps to reduce their arsenals. This includes reducing the number of nuclear warheads, dismantling nuclear delivery systems, and working towards the elimination of nuclear weapons.

The international community must also develop strategies to address emerging threats, such as cyberterrorism and the potential for non-state actors to acquire nuclear materials. These threats require new approaches and international cooperation to prevent them from undermining the NPT regime.

Regional cooperation can play a vital role in promoting nuclear nonproliferation and stability. Regional organizations, such as the Association of Southeast Asian Nations (ASEAN) and the African Union, can work to promote peace, security, and cooperation among their member states.

Public diplomacy can help to build support for the NPT and raise awareness of the risks of nuclear proliferation. Governments, international organizations, and civil society organizations can work together to inform the public about the importance of the NPT and the consequences of nuclear proliferation.

The NPT remains a crucial tool for preventing the spread of nuclear weapons and promoting disarmament. However, the treaty faces significant challenges in the current global landscape. By taking a comprehensive approach, the international community can strengthen the NPT regime and ensure its continued relevance in the years to come.

Resolution 1540 implementation in South East Asia

The most serious problem affecting the implementation of 1540 in SouthEast Asia and the Pacific relates to its perceived lack of legitimacy among many states. In South-East Asia questions over legitimacy stem primarily from the origins of the resolution and its apparent connection to the US "war on terror" and the belief that the counter-terrorism agendas of Western states represent a double standard, expecting developing states to comply with stringent non-proliferation obligations while the nuclear weapons states give inadequate attention to their own disarmament commitments. Among the island states of the South Pacific legitimacy questions focus mainly on the nature of the counter-terrorism resolutions, which have imposed universal standards of compliance on all states without due regard for the special priorities and circumstances facing the microstates of the region. In both cases these unresolved issues have bred resentment, creating an ambivalent attitude toward 1540 and a reluctance to prioritize its implementation. They have also created suspicions surrounding the assistance clause and the provision of donor assistance, which is regarded by some states as an underhanded extension of Western dominance, giving false legitimacy to the non-proliferation initiatives and projects of the United States and others. The consultative approach of the 1540 Committee and the expert group and the efforts to work with regional organizations has helped to assuage some of these concerns but sensitivities remain. For this reason any efforts to develop a more formal monitoring role for the 1540 Committee or to adopt a more forceful approach in response to non-compliance would likely back-fire in South-East Asia and the South Pacific. In both regions cooperation with the 1540 Committee is dependent on careful persuasion and would be enhanced by incentivizing states to fulfill their obligations rather than by creating more intrusive monitoring systems.109 With this in mind any positive linkages between non-proliferation instruments, such as export controls, and economic development should be explored and highlighted by the 1540 Committee in order to remove some of the negative associations. And rather than being undertaken at the global level, any formal monitoring should be carried out by agencies working under the auspices of regional organizations, which are more sensitive to local conditions.

Conclusion

The agenda on the Nuclear Non-Proliferation Treaty with emphasis on the South Asian Region is a complex and critical issue that holds profound implications for regional and global security. This background guide has shed light on the historical context, challenges, and potential pathways toward realizing nuclear peace in these volatile regions. South Asia faces unique challenges with two nuclear-armed neighbors, India and Pakistan. The absence of a NWFZ heightens concerns about regional nuclear competition. The path to establishing a NWFZ in South Asia requires sustained dialogue, trust-building efforts, and a shared commitment to disarmament. As the international community grapples with the imperatives of non-proliferation and disarmament, it is incumbent upon all stakeholders to continue engaging in constructive

diplomatic processes. Achieving progress toward the NPT in these regions would not only enhance regional security but also contribute to the broader goals of global peace and nuclear disarmament.

Delegates are urged to approach this agenda with a spirit of cooperation, creative problem-solving, and a commitment to bridging differences. The journey toward cooperation in South Asia may be arduous, but the rewards in terms of regional stability and the global nuclear order are immeasurable. Through collaborative efforts and determined diplomacy, the realization of peace in these regions can become a beacon of hope for a safer and more secure world.

Questions a Resolution must Answer:

- What are the reasons that are preventing cooperation with the NPT in the South Asian region?
- How would China being a Nuclear Weapons State (under the NPT) and a major part of the South Asia region affect the dynamics of nuclear non proliferation there?
- How would India's and Pakistan's dispute on Kashmir affect the region's stability and would it potentially hamper the progress toward nuclear non proliferation in South Asia?
- How would China being a nuclear presence in the South Asian prove to be a roadblock for India and Pakistan signing and ratifying the NPT?
- How will the countries prevent Violent Non State Actorss from acquiring or possessing Nuclear weapons to disrupt the progress toward nuclear disarmament?
- How would the countries that have not yet signed the NPT potentially deal with the issue at hand?
- What is the geographical scope of the proposed NWFZ in South Asia?
- Which states will be invited or required to participate in an NWFZ? How will participation be determined, especially considering the presence of nuclear-armed states in the regions?
- How will the new NWFZ (if created) complement the existing international treaties and bodies? (NPT, CTBT, IAEA)